

Court No. - 40

Case :- WRIT - C No. - 30650 of 2023

Petitioner :- Sandeep Kaur Virk

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Najakat Ali

Counsel for Respondent :- CSC,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner, Sri F.A. Ansari, learned Standing Counsel for State respondent no.1 and Sri Pranjal Mehrotra, learned counsel for the electricity department (respondent nos.2 to 4).

2. Present writ petition is preferred with request to issue direction in the nature of mandamus commanding and directing the respondent nos.2 to 4 to provide new electricity connection to him.

3. Sri Pranjal Mehrotra, learned counsel for the electricity department has placed the letter dated 15.09.2023 sent by the Executive Engineer, Electricity Distribution Division, Rampur to the petitioner indicating therein that there is outstanding dues qua the premises in question. Firstly in the light of the provisions contained in Clause 4.3 (f) (viii) of the Electricity Supply Code, 2005 the application shall be processed by the licensing authority after clearing all the dues. He submits that there is outstanding amount of Rs.1,55,175/- and as and when the said outstanding amount is deposited to the respondent authority, the application would be processed as per law. The instruction is taken on record.

4. Considering the facts and circumstances, no useful purpose would be served in keeping the writ petition pending consideration.

5. In case the petitioner clears the outstanding dues, the electricity department would consider the application of the petitioner forthwith.

6. With the aforesaid observation/direction, the writ petition is disposed of.

Order Date :- 11.10.2023

RKP